

Know Your Rights

Patients' rights for mental healthcare in Maharashtra

A resource summarising the rights that protect you or someone you know.

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Know Your Rights

Introduction

India's mental health system has long been shaped by institutional models rooted in confinement and control rather than recovery, dignity, and community support. Despite important legal reforms in recent years, many people with mental health conditions and psychosocial disabilities continue to face violations of their fundamental rights, including forced treatment, prolonged institutionalisation, denial of informed consent, and discrimination. Women, persons from Dalit, Adivasi, and other marginalised communities, and those living in poverty are disproportionately affected.

However, Indian law now provides strong protections. The **Constitution of India**, the **Mental Healthcare Act, 2017 (MHCA)**, and the **Rights of Persons with Disabilities Act, 2016 (RPwD Act)** together guarantee your right to dignified, community-based mental healthcare, informed consent, legal capacity, and freedom from abuse. India has also ratified the **UN Convention on the Rights of Persons with Disabilities (CRPD)**, which reinforces these protections under international law.

This patients' rights education document summarises the rights that protect you or someone you know. Understanding your rights is the first step toward holding the system accountable.

1. Constitutional Rights

The Constitution of India provides the foundational guarantees that underpin all mental health rights:

- **Right to Life and Dignity (Article 21):** The Supreme Court has consistently held that the right to life includes the right to live with dignity, access to healthcare, and protection from cruel or degrading treatment. This applies fully to persons in mental health institutions.
- **Right to Equality (Article 14):** Every person is equal before the law. You cannot be treated differently or denied services solely because of a mental health condition or psychosocial disability.
- **Right against Discrimination (Article 15):** The State cannot discriminate against any citizen on grounds that include disability. Persons with psychosocial disabilities are entitled to equal access to public services, institutions, and facilities.
- **Right against Exploitation (Article 23):** No person can be subjected to forced labour or held in conditions amounting to servitude, including within institutional care settings.

2. Rights Under the Mental Healthcare Act, 2017

- **Right to Access Mental Healthcare (Section 18):** Every person has the right to affordable, good-quality mental healthcare and treatment, provided by the government. Services must be available at the community level, including through the District Mental Health

Programme (DMHP), primary health centres, and tele-mental health platforms such as Tele-MANAS.

- **Right to Informed Consent (Section 89):** No treatment can be administered without your free and informed consent. You have the right to be told about your diagnosis, proposed treatment, its risks, and alternatives, and to accept or refuse any treatment.
- **Right to Advance Directives (Sections 5–14):** You can prepare a written advance directive specifying how you wish to be treated, or not treated, during a future mental health crisis when you may be unable to express your wishes. You can also appoint a nominated representative to act on your behalf.
- **Right to Community Living (Section 19):** You have the right to live in and be part of your community. The government must provide support for community living, including halfway homes, rehabilitation centres, and supported housing, rather than defaulting to long-term institutionalisation.
- **Right to Dignity and Protection from Abuse (Section 20):** No person shall be subjected to cruel, inhuman, or degrading treatment in any mental health establishment. This includes a prohibition on chaining, physical restraint without safeguards, solitary confinement, and forced medication without due process.
- **Right to Confidentiality (Section 23):** All information about your mental health condition, treatment, and admission is confidential. It cannot be shared without your consent except in limited circumstances defined by law.
- **Protection during Admission:** Involuntary admission is permitted only where there is an imminent risk of harm, and only after psychiatric examination. It must be reported to the Mental Health Review Board within 7 days, reviewed regularly, and you have the right to challenge it. During any admission, you retain the right to communicate with family and lawyers, receive visitors, have access to your medical records, and be treated in the least restrictive setting possible.

3. Rights Under the Rights of Persons with Disabilities Act, 2016

- **Right to Equality and Non-Discrimination (Section 3):** You cannot be discriminated against on the basis of your disability in employment, education, healthcare, housing, or any other sphere of life. Reasonable accommodations must be provided.
- **Right to Legal Capacity (Section 13):** Having a mental health condition does not mean you lose the right to make decisions about your own life. The law recognises your legal capacity on an equal basis with others. Any support should be through supported decision-making, not substitution of your will.
- **Right to Community Living (Section 5):** The government must take steps to ensure persons with disabilities can live independently in the community, with access to support services, social protection, and reasonable accommodation.

- **Right to Protection from Abuse and Exploitation (Section 7):** You have the right to be protected from all forms of abuse, violence, and exploitation, including within institutional settings.

4. Protections Under International Law

India has ratified key international instruments that reinforce and expand these domestic protections:

- **UN Convention on the Rights of Persons with Disabilities (CRPD):** The CRPD, ratified by India in 2007, recognises persons with psychosocial disabilities as rights-holders with full legal capacity (Article 12), the right to liberty and freedom from arbitrary detention (Article 14), protection from torture and cruel treatment (Article 15), the right to live independently in the community (Article 19), and the right to the highest attainable standard of health without discrimination (Article 25). The CRPD calls for a shift away from institutionalisation toward community-based, rights-affirming care.
- **International Covenant on Economic, Social and Cultural Rights (ICESCR):** Article 12 obligates India to ensure the right of everyone to the highest attainable standard of physical and mental health, including access to appropriate facilities and treatment.
- **International Covenant on Civil and Political Rights (ICCPR):** Article 7 prohibits torture and cruel, inhuman or degrading treatment, including non-consensual medical treatment. Article 9 protects the right to liberty and security of a person.

5. Where to Seek Help If Your Rights Are Violated

If you or someone you know is facing violations of mental health rights, you can approach the following bodies:

BODY	HOW THEY CAN HELP
Mental Health Review Board	Review involuntary admissions, hear complaints about treatment, and order corrective action against mental health establishments.
State Mental Health Authority	Register and inspect mental health establishments, set quality standards, and address systemic complaints.
District Collector / Magistrate	Intervene in cases of abuse, neglect, or illegal detention in mental health establishments.
National / State Human Rights Commission	Investigate human rights violations in mental health institutions and recommend corrective measures.
Legal Services Authority	Provide free legal aid to enforce your rights if you cannot afford a lawyer.
Tele-MANAS Helpline: 14416	Free, confidential mental health support available across India.

To learn more about the status of these rights and your ability to exercise them within institutions in Maharashtra, read our white paper on the subject. Engage further with **One Future Collective's Care Not Custody campaign** where you can share your story and advocate for more institutional accountability and access to rights.